

client, not Schrick, as contractor, to decide whether the prototypes' development was to be treated as secret.

There was no obligation to maintain secrecy in the following cases:

In T 7/07 a third party had claimed inter alia that the main claims of the patent lacked novelty over a prior use, namely, the conduct of **clinical trials** with contraceptives containing the composition claimed in the patent. The participants had been informed of the ingredients but had not signed a confidentiality agreement, and not all unused drugs had been returned. The board came to the conclusion that the handing out of the drugs to the participants rendered them publicly available and that it was possible for the skilled person to discover the composition or the internal structure of the product used in the clinical trials and to reproduce it without undue burden.

In T 945/09 the teaching according to claim 1 of the patent in suit was used by a patient while having "home parenteral nutrition" (HPN). The opposition division had concluded that all information concerning the use of taurolidine as a catheter lock available to the acting medical team, to the patent proprietor (supplier of taurolidine) and to the patient, was covered by an implicit obligation of confidentiality which stemmed from the specific circumstances of the case. The board held that there was no reason for the patient to treat that knowledge as a secret, because at that time the acting doctors simply tried to apply taurolidine of whatever provenance using a technique they derived freely and easily from the state of the art common to them at that time.

In T 602/91, in the board's view, there had been no tacit agreement, as the two parties had not concluded a development agreement or entered into any other contractual relations that would indicate either of them having had any particular interest in a secrecy agreement. Furthermore, a single case of co-operation between a manufacturer and a potential end-user of the product was not sufficient to assume that a tacit confidentiality agreement had been entered into.

In case T 809/95 the granted patent was, inter alia, for a plastic bottle, the special features of which related to its foldability. The prior use alleged by the opponents had occurred in connection with a "market test" performed by a market research company on behalf of the third party to gauge the market for such bottles. The patent proprietor claimed that both prior uses had been subject to confidentiality rules. The board held that the very fact that the third party had chosen a test variant allowing the test participants to take the bottles home indicated that it attached no particular value to confidentiality in the patent sense. Nor was there any circumstantial obligation to maintain secrecy since the market research institute did not employ or have a business relationship with the test persons.

In T 1464/05 the board considered that the mere fact that a product has been delivered possibly for carrying out tests in what appears to be the result of an ordinary commercial transaction does not constitute by itself, in the absence of any other special circumstance or supporting evidence, a sufficient condition for concluding that the product was necessarily delivered under an implicit confidentiality agreement (see in this respect decisions T 602/91, T 264/99, T 913/01, T 407/03, and T 1510/06). There was no

indication that any express secrecy agreement existed between the two companies, but also no indication that any particular or special relationship existed between the two companies other than the ordinary relationship between a seller and a buyer company. As held in decision T 681/01, "there must be something in the circumstances that suggests that a confidential relation existed before a delivery which appears to be the result of an ordinary commercial transaction can be disregarded as not making the delivered goods available to a member of the public".

In T 1054/92 of 20 June 1996 the opponent had alleged and proved that the claimed invention, an absorbent structure for diapers, had been tested in public tests carried out by several hundred members of the public at several places in the USA over several weeks. The board was convinced in the light of common experience that it was very unlikely that these tests had been kept confidential, particularly since some of the used diapers had not been returned to the appellant.

In T 2068/15 the board accepted that that, if joint development projects are agreed, they often are – explicitly or implicitly – combined with an obligation of confidentiality. In the case at hand, the board did however not see enough indications from which it could be convincingly concluded that a joint development project existed. The circumstances were suggestive of ordinary sales rather than the sending of samples in the framework of a joint development project.

3.4.8 Conferences

In T 739/92 an oral description of the invention had been given in a conference. The question was whether the participants at this conference were bound to secrecy and could therefore not be seen as constituting "the public" within the meaning of Art. 54(2) EPC 1973. The list of participants showed that the conference was open to every specialist active in the relevant field. The participants were not prohibited from disseminating oral information from the conference, or from publishing information from it provided that they omitted any reference to the conference. Recording the lectures on tape, etc. and photographing slide material were prohibited. The board held that under these conditions the participants at this conference were to be regarded as normal members of the public since there was no secrecy agreement. In contrast to the situation in T 300/86, the participants were neither licensees of the organisers nor subject to a blanket contractual prohibition from communicating the information they obtained to third parties.

In T 838/97 the invention was presented orally at a conference attended by about 100 of the most renowned experts in the respective technical field including potential rivals. The participants were explicitly instructed that information presented at the conference was not to be used without the specific authorisation of the individual who made the contribution. The board considered that the participants were bound by a confidentiality agreement and thus the invention was not to be considered to form part of the state of the art.

3.4.9 Public availability of documents submitted for standardisation

In T 202/97 the board held that a draft standard sent together with an agenda to the members of an international standards working party as part of the preparations for a meeting on standards was not normally confidential and was thus available to the public. Even though only a particular group of persons had been invited to take part in the meeting on standards, it was the task of a standards committee to draw up, with the experts in the field, proposals for standards which had been agreed upon, on as broad a basis as possible, and which were based on the current state of developments. This task precluded any obligation to maintain confidentiality. See also T 2239/15 on the question of the public availability of documents (D1/D2), which the board stated was directly linked to the procedures of MPEG when elaborating new standards. The board held that in the absence of an explicit confidentiality agreement, a bar of confidentiality could not be seen to have been in place in the case in hand. The working group was small enough to make the explicit signing of confidentiality agreements possible, if "absolute" confidentiality (to keep it strictly limited to this group of members present in the meetings) had been intended.

In ex parte case T 1440/09 the appellant did not contest that D1 had been on the internet before the earliest priority date of the application. D1 was a contribution submitted to the Joint Video Team (JVT) for its 15th meeting in Busan, KR, which took place from several months before the earliest priority date. Furthermore, the board noted that none of the documents on file indicated that contributions to JVT meetings were to be kept confidential even after the meeting in question. The appellant alleged however the confidential nature of D1 based on the understanding that one of the purposes of the "JVT Patent Disclosure Form" was to protect the submitter from its contribution to the JVT meeting being held against its own later patent application. The board stated that the standard, preprinted "JVT Patent Disclosure Form" did not comprise any explicit indication that the technical contribution of the paper it accompanied should be kept confidential. The mere fact that the submitter of contribution D1 might have ticked the box that it was "not aware of any granted, pending or planned patents associated with the technical content of the Recommendation | Standard or Contribution" in point 2.0 of said form did not imply that the contribution D1 was to be kept confidential by any person to whom it was available. The board found that D1 constituted prior art under Art. 54(2) EPC 1973 for the application in the case in hand.

T 738/04 concerned standards institutes too, but confidentiality was in the end not decisive; it is mentioned here because it deals with these institutes' practices.

This question also arises in the context of Art. 83 EPC (see T 1155/12, T 1049/11).

3.4.10 Joint venture and other commercial agreements

In T 472/92 (OJ 1998, 161) the board ruled that the existence of a joint venture agreement implied an obligation to maintain secrecy. It was found that an existing joint venture agreement would normally include an explicit or implicit confidentiality obligation between the common daughter and its parents.

In T.633/97 the opponent had to prove that an alleged prior use had in fact been made public, i.e. there was no obligation to maintain secrecy between the respective contractors. The board stated that, depending on the nature of the business relations and the status of the companies involved, the existence of such an obligation might be assumed on a prima facie basis without the necessity of a written agreement. In the case at issue, LLNL was acting in the national interest of the United States of America in fields which had to be considered classified. The very nature of this project, i.e. uranium enrichment technology, led to the conclusion that all persons involved had to be bound to secrecy.

Similarly, in decision T.1076/93, the board considered a weapons manufacturer normally not to form part of the public but to be implicitly supposed by its contractors to behave as if an agreement of secrecy had been specified (see also T.1619/06).

In T.163/03 the appellant (opponent) contended that the technical details of the apparatus as shown in the drawing D2 became state of the art when this drawing was given, without any confidentiality restriction, to BMW in May 1990, i.e. before the priority date of the patent in suit. The board held that where, as there, the terms and conditions of a technical cooperation, including related obligations of secrecy, had been explicitly specified and agreed upon by the partners of the cooperation by way of a written contract, the contractual provisions prevailed and left no room for construing implicit obligations of the parties which differed from or were incompatible with anything which the partners, on proper interpretation of the contract, had fixed therein. The board found that there was no reason whatsoever to assume, in the absence of any explicit secrecy obligation, that BMW could nevertheless have been under an implicit obligation to keep secret the manufacturing technology disclosed to it by the opponent within the framework of the SE project.

3.4.11 Paper submitted to obtain an academic degree

In T.151/99 the board held that, in general, it appeared highly plausible that a paper submitted to obtain an academic degree (in this case a master's thesis) was not confidential, and that became a virtual certainty if the paper was referred to in published scientific work. If the reference was in a document published before the priority date of the patent in suit, it could be assumed that the paper had also been made available to the public before that date (see also T.451/00, T.538/09, T.1817/08, T.1266/11 and T.1057/09).

3.4.12 Medical field

In T.906/01 the alleged public prior use concerned the implantation of a correction device into a patient. There remained some doubt as to the I. Spinal System which was really implanted. The board considered that a device having an investigational status, being implanted and tested within the restricted area of a hospital, under the responsibility of a surgeon operating within the framework of an investigator's agreement which included a confidentiality clause, had to be regarded as a prototype device. Usually the development and test phases of such products or devices were necessarily surrounded by secrecy as long as said products or devices had not been approved and commercialised (see also T.818/93). The board followed the reasoning of T.152/03 that, in this field, there was a

prima facie assumption that any person involved in a medical process was obliged to maintain confidentiality, given the need for patient confidentiality and the need to protect the development and testing of prototype devices, and that any evidence proving the contrary was important and had to be produced as soon as possible.

Decision T 239/16 dealt with the availability to the public of **clinical trials documents**. The board came to the conclusion that the contents of document (55) had been made available to persons neither being bound by any confidentiality agreement nor being in a special relationship to the study sponsor. However, document (55) did not directly and unambiguously disclose the effective treatment of osteoporosis as defined in the independent claims of the main request.

The sale of a product for a commercial purpose is not compatible with the concept of an implied obligation to maintain confidentiality. The board in T 505/15 noted that T 152/03 and T 906/01 referred to a prima facie assumption that any person involved in the medical process was obliged to maintain confidentiality, given the need for patient confidentiality and the need to protect the development and testing of prototype devices. T 505/15 differed in that the prior use occurred in a commercial context. The board concluded that there was no obligation to maintain confidentiality.

3.4.13 Notary

In T 1553/06 the board stated that the notary was not a member of the public. As the board considered that the notary was not entitled to disclose the content of the document at issue, the question whether the notary had the technical knowledge to understand that content is of no relevance.

3.5. Evidence

3.5.1 Burden of proof

Where lack of novelty is alleged, the burden of proof lies with the party claiming that the information in question was made available to the public before the relevant date (see, for example T 193/84; T 73/86; T 162/87; T 293/87; T 381/87, OJ 1990, 213; T 245/88 and T 82/90). According to the boards' established case law, each of the parties to the proceedings bears the burden of proof for the facts it alleges. If a party, whose arguments rest on these alleged facts, does not discharge its burden of proof, this is to the detriment of that party, who may not shift the onus of proof onto the other party (see T 270/90, OJ 1993, 725; T 355/97; T 836/02; T 176/04; T 175/09; T 443/09).

3.5.2 Standard of proof

a) General

The boards of appeal have developed in their case law certain principles as to the standard of proof required to establish the facts on which a decision is to be based. In some decisions the boards of appeal have applied the standard of "the balance of probabilities",